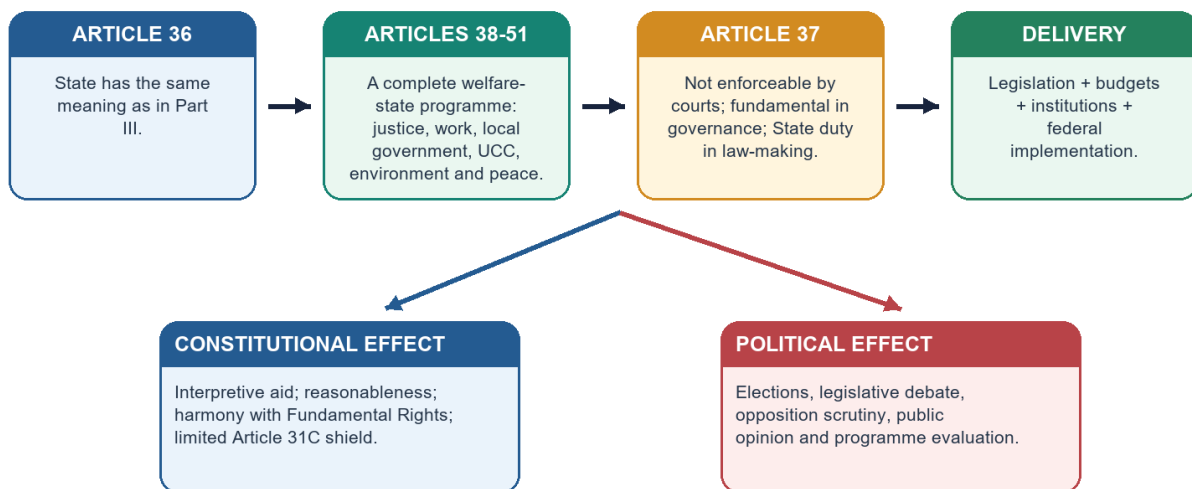


SOLVED PRACTICE WORKBOOK

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Part IV architecture: direction without direct enforcement

The constitutional chain runs from definition to duty, policy delivery and accountability.



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Solved topic-specific MCQs, verified PYQs, remedial drills and original Mains practice

PART III - Every verified routed previous-year question

Mains PYQ 1. UPSC 2023 GS-II Q2 - Who are entitled to receive free legal aid? Assess the role of the National Legal Services Authority (NALSA) in rendering free legal aid in India. (10 marks, 150 words)

Model answer. Thesis: Free legal aid is a constitutional access-to-justice commitment under Article 39A, reinforced by Article 21 fair-procedure jurisprudence and operationalised through the Legal Services Authorities Act, 1987.

Entitlement: Section 12 covers SC/ST members; victims of trafficking or begar; women and children; persons with disability; victims of mass disaster, ethnic violence, caste atrocity, flood, drought, earthquake or industrial disaster; industrial workmen; persons in custody; and persons below the income ceiling prescribed by the appropriate government. Under section 13, the authority must also find a prima facie case.

NALSA's role: NALSA frames national policy and schemes and coordinates a tiered network of State Authorities, Supreme Court/High Court Committees, District Authorities and Taluk Committees. The network supplies advice, counsel, drafting, litigation expenses, legal-awareness and clinic services, and organises Lok Adalats. *M.H. Hoskot* and *Hussainara Khatoon* show why legal representation can be integral to fair procedure.

Assessment: The statutory architecture is decentralised and includes several vulnerable groups irrespective of income. However, low awareness, uneven panel-lawyer quality, weak client communication and disposal-focused metrics reduce effective access.

Conclusion: NALSA has converted Article 39A from an aspiration into an institutional entitlement; its next task is quality-assured, early and client-centred legal service rather than mere case disposal.

Why this earns marks: It answers both limbs, accurately lists section 12 categories, adds section 13, names the full institutional chain and two cases, assesses achievements and delivery limits, and gives a reform-oriented verdict within a 10-marker structure.

Prelims PYQ 1. UPSC 2020 GS-I Q5 - Separation of judiciary

In India, separation of judiciary from the executive is enjoined by:

- A. the Preamble of the Constitution
- B. a Directive Principle of State Policy
- C. the Seventh Schedule
- D. conventional practice

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Article 50 in Part IV directs the State to separate the judiciary from the executive in the public services of the State. The local repository has the official question paper but no official 2020 key.

Prelims PYQ 2. UPSC 2020 GS-I Q8 - UDHR principles

Other than the Fundamental Rights, which parts of the Constitution reflect the principles and provisions of the Universal Declaration of Human Rights, 1948?

1. Preamble
 2. Directive Principles of State Policy
 3. Fundamental Duties
- A. 1 only
 - B. 2 only
 - C. 1 and 3 only
 - D. 1, 2 and 3

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: The Preamble's justice/liberty/equality/fraternity, Part IV's socio-economic commitments and Part IVA's dignity, tolerance and internationalist duties reflect UDHR values. "Reflect" does not mean verbatim or article-by-article incorporation.

Prelims PYQ 3. UPSC 2020 GS-I Q9 - Free legal services eligibility

In India, Legal Services Authorities provide free legal services to which of the following types of citizens?

1. Person with annual income below Rs 1,00,000
 2. Transgender person with annual income below Rs 2,00,000
 3. OBC member with annual income below Rs 3,00,000
 4. All senior citizens
- A. 1 and 2 only
 - B. 4 only
 - C. 2 and 3 only
 - D. 1 and 4 only

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A (moderate-to-high confidence).

Explanation: The contemporaneous legal-services framework treated statements 1 and 2 as eligible. OBC status alone is not a section 12 category and all senior citizens are not automatically included nationally. Current-answer discipline is more important than memorising the old amounts: section 12 contains category eligibility plus an income route whose ceiling is prescribed by the appropriate government.

Prelims PYQ 4. UPSC 2020 GS-I Q12 - Welfare State

Which part of the Constitution of India declares the ideal of a Welfare State?

- A. Directive Principles of State Policy
- B. Fundamental Rights
- C. Preamble
- D. Seventh Schedule

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A (high confidence).

Explanation: Part IV, especially Articles 38 and 39, supplies the welfare-state programme. The Preamble states justice goals, but the question asks the Part declaring the welfare-state ideal.

Prelims PYQ 5. UPSC 2020 GS-I Q18 - Part IV enforceability

With reference to Part IV, which statements are correct?

1. They shall be enforceable by courts.
 2. They shall not be enforceable by any court.
 3. The principles laid down in this Part are to influence law-making by the State.
- A. 1 only
 - B. 2 only
 - C. 1 and 3 only
 - D. 2 and 3 only

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D (high confidence).

Explanation: Article 37 expressly combines non-enforceability with the principles' fundamental governance status and State duty in law-making.

Prelims PYQ 6. UPSC 2021 GS-I Q91 - Concentration of wealth

Under the Indian Constitution, concentration of wealth violates:

- A. Right to Equality
- B. Directive Principles of State Policy
- C. Right to Freedom

- D. concept of Welfare

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: B (high confidence).

Explanation: Article 39(c) directs that the economic system should not result in concentration of wealth and means of production to the common detriment. The language is directive, not a standalone Fundamental Right violation.

Prelims PYQ 7. UPSC 2025 GS-I Q55 - Provision matched to constitutional location

Consider the following pairs:

1. Separation of judiciary from executive in State public services - Directive Principles of State Policy
2. Valuing and preserving the rich heritage of composite culture - Fundamental Duties
3. Prohibition of employment of children below fourteen years in factories - Fundamental Rights

How many pairs are correctly matched?

- A. Only one
- B. Only two
- C. All three
- D. None

OFFICIAL LOCAL UPSC KEY VERIFIED: C.

Explanation: Pair 1 is Article 50 in Part IV; pair 2 is Article 51A(f) in Part IVA; pair 3 is Article 24 in Part III. The Set-A official local key scan was directly checked and records Q55 as C.

PART IV - Original hard MCQs

Correct options rotate strictly A -> B -> C -> D, repeated seven times.

Q1. With reference to Articles 36 and 37, consider the following statements:

1. "State" in Part IV has the same meaning as in Part III.
2. Every Directive Principle creates an enforceable claim once Parliament has not acted for a reasonable period.
3. Article 37 combines non-enforceability with a duty on the State in making laws.

Which statements are correct?

- A. 1 and 3 only
- B. 2 only
- C. 1 and 2 only
- D. 1, 2 and 3

Answer: A.

Explanation: Statements 1 and 3 reproduce Articles 36-37. Delay does not automatically convert every directive into a judicially enforceable claim. Courts may use DPSP interpretively, but Article 37 remains.

Q2. Which one of the following most accurately describes the historical analogy used for DPSP?

- A. They reproduce the enforceable social rights in the United States Bill of Rights.
- B. They resemble the Instrument of Instructions under the Government of India Act, 1935, but are addressed to democratic legislative and executive authorities.
- C. They are identical to Irish constitutional provisions and were copied without adaptation.
- D. They convert conventions of Cabinet government into judicial remedies.

Answer: B.

Explanation: Ireland was the immediate constitutional source, with a Spanish antecedent. Ambedkar's Instrument-of-Instructions analogy explains guidance to public authorities, not judicial enforcement.

Q3. Consider the following pairs:

1. Article 39(b) - distribution of material resources to subserve the common good
2. Article 39(c) - prevention of concentration of wealth and means of production to common detriment
3. Article 39(e) - equal pay for equal work
4. Article 39(f) - dignified development and protection of childhood/youth

Which pairs are correctly matched?

- A. 1 and 2 only
- B. 2, 3 and 4 only
- C. 1, 2 and 4 only
- D. 1, 2, 3 and 4

Answer: C.

Explanation: Equal pay is Article 39(d). Article 39(e) protects worker/child health and prevents economic necessity from forcing unsuitable avocations.

Q4. Which directive contains an express qualification tied to the State's economic capacity and development?

- A. Article 39A
- B. Article 40
- C. Article 42
- D. Article 41

Answer: D.

Explanation: Article 41 qualifies provision for work, education and public assistance by "within the limits of its economic capacity and development."

Q5. Which classification statement is most accurate?

- A. Article 43 overlaps: living wage is commonly socialistic, while cottage industries give it a Gandhian dimension.
- B. Article 48A is constitutionally labelled Gandhian.
- C. Article 44 is classified as socialistic by the constitutional text.
- D. Articles 47 and 48 can belong to only one scholarly category each.

Answer: A.

Explanation: The threefold taxonomy is scholarly, not constitutional. Articles 43, 47 and 48 overlap in standard classifications.

Q6. Consider the following amendment changes:

1. 42nd - Articles 39A, 43A and 48A
2. 44th - Article 38(2)
3. 86th - Article 21A and recast Article 45
4. 97th - Article 43B

Which is the correct assessment?

- A. 1 and 4 only
- B. All four are correctly matched
- C. 2 and 3 only
- D. 1, 2 and 3 only

Answer: B.

Explanation: All are correct. The 42nd Amendment also changed the child-protection clause reflected in Article 39(f).

Q7. After Union of India v. Rajendra N. Shah (2021), which position is correct?

- A. The entire 97th Amendment, including Article 43B, is void.
- B. Part IXB is fully valid for every State co-operative society because co-operatives serve a DPSP.
- C. Part IXB is operative for multi-State co-operative societies, but its application to State co-operative societies failed for want of ratification; Article 43B remains.
- D. Parliament has no competence over multi-State co-operative societies.

Answer: C.

Explanation: The Court used federal amendment procedure and severability. Welfare purpose could not cure the failure to obtain required State ratification.

Q8. Which statement about the current Article 31C is correct?

- A. It protects every law implementing any Directive Principle from every Fundamental Right.
- B. It prevents courts from examining whether a law genuinely implements Article 39(b) or (c).
- C. It was wholly erased when the 42nd Amendment extension was struck down.
- D. It protects genuine Article 39(b)/(c) laws against Articles 14 and 19, while judicial review of the nexus and basic structure remains.

Answer: D.

Explanation: This is the combined effect of *Kesavananda*, *Minerva Mills* and *Property Owners Association*.

Q9. Under Property Owners Association (2024), which formulation is correct?

- A. A privately owned resource may fall under Article 39(b) depending on its nature, community impact, scarcity, concentration and common-good dimension.
- B. Every private asset is automatically a material resource of the community.
- C. No privately owned resource can ever fall within Article 39(b).
- D. Article 39(b) applies only after the State has first nationalised the resource.

Answer: A.

Explanation: The nine-judge Bench rejected both automatic inclusion and automatic exclusion. Distribution may take multiple forms and must subserve the common good.

Q10. Arrange the following in correct constitutional sequence:

1. *Golaknath*
 2. 25th Amendment
 3. *Minerva Mills*
 4. *Kesavananda Bharati*
- A. 2-1-4-3
 - B. 1-2-4-3
 - C. 1-4-2-3
 - D. 2-4-1-3

Answer: B.

Explanation: 1967 -> 1971 -> 1973 -> 1980. The sequence traces unamendability, Article 31C, basic structure and restoration of Part III-Part IV balance.

Q11. Which chain most accurately explains the constitutionalisation of education?

- A. Article 45 directly became enforceable without amendment or legislation.
- B. Article 21A was inserted by the 42nd Amendment and later removed from Part III.
- C. Articles 41/45 informed *Unni Krishnan*; the 86th Amendment inserted Article 21A and recast Article 45; the RTE Act supplied a statutory mechanism.
- D. Article 46 alone created the enforceable right for every age group.

Answer: C.

Explanation: The chain illustrates DPSP -> rights interpretation -> constitutional amendment -> statute.

Q12. Which statement correctly distinguishes Article 40 and the 74th Amendment?

- A. Article 40 expressly directs creation of Municipalities.
- B. The 74th Amendment repealed Article 40.
- C. Article 40 applies only to Parliament and not States.
- D. Article 40 expressly concerns village panchayats; Municipalities are separately constitutionalised in Part IXA.

Answer: D.

Explanation: Local-government implementation overlaps, but the Article's exact text must be preserved.

Q13. With reference to labour implementation, which is most accurate as of 15 August 2026?

- A. An official 21 November 2025 announcement brought all four Labour Codes into effect, but enactment does not prove uniform compliance or State capacity.
- B. None of the four Labour Codes has commenced.
- C. Only the Code on Wages is relevant to Articles 42-43A.
- D. Old central labour statutes must still be cited as the sole current framework without qualification.

Answer: A.

Explanation: Current examples should use the four Codes, while retaining implementation and federal-rule cautions.

Q14. Which is the correct legal-services institutional order from national to grassroots?

- A. NALSA -> DLSA -> SLSA -> Taluk Committee
- B. NALSA -> SLSA -> DLSA -> Taluk Legal Services Committee
- C. Supreme Court -> Parliament -> DLSA -> Gram Sabha
- D. NALSA -> Finance Commission -> High Court -> Lok Sabha

Answer: B.

Explanation: Court-specific committees also exist, but the territorial hierarchy is national, State, district and Taluk.

Q15. Consider the following regarding sections 12 and 13 of the Legal Services Authorities Act:

1. A woman is a section 12 category irrespective of the general income route.
2. Every OBC member is independently listed as a category.
3. A person in custody is a listed category.
4. The authority must be satisfied that there is a prima facie case.

Which statements are correct?

- A. 1 and 2 only
- B. 2, 3 and 4 only
- C. 1, 3 and 4 only
- D. 1, 2, 3 and 4

Answer: C.

Explanation: OBC status by itself is not listed. The Act combines category/income eligibility with prima facie screening.

Q16. If an ordinary Lok Adalat fails to secure settlement in a pending court case, what follows?

- A. It must decide the dispute on merits.
- B. Its members may impose a compromise in the public interest.
- C. The dispute becomes non-justiciable.
- D. The record returns to the referring court, which continues from the stage reached before reference.

Answer: D.

Explanation: Ordinary Lok Adalat is a conciliatory forum. Its award requires compromise or settlement.

Q17. Which feature uniquely marks a Permanent Lok Adalat?

- A. For a pre-litigation public-utility dispute, it may decide on merits after conciliation fails, provided the dispute does not relate to an offence.
- B. It hears appeals from ordinary Lok Adalat awards.
- C. It can decide non-compoundable criminal offences.
- D. It is constitutionally created by Article 39A without statutory basis.

Answer: A.

Explanation: Sections 22A-22E create the body. It begins with conciliation but has limited adjudicatory power.

Q18. Which statement about Article 44 is correct?

- A. It directs courts to enact a uniform code when Parliament fails.
- B. It directs the State to endeavour to secure a UCC for citizens throughout India; personal-law subjects lie in Concurrent List Entry 5.
- C. It is a Fundamental Duty enforceable through Article 32.
- D. It applies only to criminal law, which remains non-uniform.

Answer: B.

Explanation: Article 44 is a non-justiciable DPSP. Entry 5 supplies legislative competence in family/personal-law fields.

Q19. Which case-description pair is incorrectly stated?

- A. *Shah Bano* - secular maintenance law and an Article 44 observation
- B. *Sarla Mudgal* - conversion cannot be used to evade an existing marriage
- C. *Shayara Bano* - Supreme Court ordered Parliament to enact a UCC within a fixed period
- D. *John Vallamattom* - discriminatory succession restriction and an Article 44 observation

Answer: C.

Explanation: *Shayara Bano* concerned instant triple talaq. No case listed here issued a judicial command enacting or compelling a UCC.

Q20. Which statement accurately describes the Uttarakhand UCC position?

- A. It commenced before Presidential assent.
- B. It applies to every Scheduled Tribe without exception.
- C. Its reported 2026 Ordinance has a securely verified permanent replacement status.
- D. The 2024 Act received assent on 11 March 2024, commenced on 27 January 2025, and section 2 contains the verified Scheduled Tribe/customary-rights exclusion.

Answer: D.

Explanation: The 2026 Ordinance was officially reported under Article 213, but its later replacement/lapse status is not claimed.

Q21. Which set contains only directives outside Part IV?

- A. Articles 335, 350A and 351
- B. Articles 39A, 350A and 351
- C. Articles 335, 43B and 351
- D. Articles 44, 50 and 350A

Answer: A.

Explanation: Articles 335, 350A and 351 lie in Parts XVI/XVII. They are often studied as constitutional directives outside Part IV.

Q22. Which distinction is correct?

- A. Article 48A concerns scientific animal husbandry, while Article 48 concerns forests.
- B. Article 48 combines scientific agriculture/animal husbandry with cattle protection; Article 48A concerns environment, forests and wildlife.
- C. Both Articles were inserted by the 97th Amendment.
- D. Article 48A is a Fundamental Duty.

Answer: B.

Explanation: Article 48A is a DPSP added by the 42nd Amendment; Article 51A(g) is the related Fundamental Duty.

Q23. Consider the following:

1. Article 49 protects nationally important monuments/places/objects declared by or under Parliamentary law.
2. Article 50 directs separation of judiciary from executive in State public services.
3. Article 51 encourages settlement of international disputes by arbitration.

Which are correct?

- A. 1 only
- B. 1 and 2 only
- C. 1, 2 and 3
- D. 2 and 3 only

Answer: C.

Explanation: All reproduce often-neglected textual elements of Articles 49-51.

Q24. Which statement best captures Article 47?

- A. It only directs total prohibition and says nothing about nutrition.
- B. It creates an absolute Fundamental Right to health enforceable without legislation.
- C. It concerns animal husbandry and cattle breeds.
- D. It treats nutrition, standard of living and public health as primary duties and also directs prohibition of intoxicants injurious to health except medicinal use.

Answer: D.

Explanation: Article 47 has both welfare/public-health and prohibition limbs.

Q25. Which use of a named critic is most defensible?

- A. Use K.T. Shah's "pious superfluities" to introduce the no-remedy critique, then answer it with Article 37 duty, political sanction and interpretive force.
- B. Attribute "Conscience of the Constitution" to K.T. Shah.
- C. Claim Ivor Jennings supported immediate judicial enforcement of every directive.
- D. Treat N. Srinivasan's classification as part of constitutional text.

Answer: A.

Explanation: Named quotations add value only when accurately attributed and connected to an argument and counterargument.

Q26. Which explains why DPSP implementation varies across India?

- A. Article 37 bars States from making welfare laws.
- B. Many directives concern State/Concurrent fields, and fiscal, institutional and administrative capacity differs across States.
- C. Every DPSP must be implemented only by constitutional amendment.
- D. Courts allocate identical budgets for every State.

Answer: B.

Explanation: Federal competence and capacity produce both innovation and unequal delivery.

Q27. Which matching is correct?

1. Article 43 - living wage and cottage industries
 2. Article 43A - workers' participation in management
 3. Article 43B - voluntary, autonomous, democratic and professionally managed co-operatives
- A. 1 only
 - B. 2 and 3 only
 - C. 1, 2 and 3
 - D. 1 and 3 only

Answer: C.

Explanation: The three adjacent Articles test wage/cottage economy, industrial participation and co-operative governance respectively.

Q28. Parliament enacts a statute declaring that every privately owned urban flat is a material resource of the community, states that it implements every DPSP, and bars all court review. Which is the best constitutional assessment?

- A. The declaration conclusively activates Article 31C.
- B. Article 31C protects it from every Fundamental Right because housing is welfare-related.
- C. Courts cannot question resource classification or basic structure.
- D. The law must show a genuine 39(b)/(c) nexus; not every private asset qualifies automatically; the surviving shield is only against Articles 14/19 and judicial review cannot be ousted.

Answer: D.

Explanation: The hypothetical combines *Kesavananda*, *Minerva Mills* and *Property Owners Association*. A welfare label is not constitutional proof.

PART V - Remedial MCQs for common errors

Correct options rotate strictly A -> B -> C -> D, repeated twice.

R1. Which is the safest statement?

- A. DPSP are non-justiciable, but fundamental in governance and a State duty in law-making.
- B. DPSP have no constitutional force.
- C. Every DPSP is enforceable through Article 32.
- D. Article 37 applies only during an Emergency.

Answer: A.

Explanation: This is the complete Article 37 formulation. Do not stop at "non-justiciable."

R2. The familiar Socialistic-Gandhian-Liberal classification is:

- A. contained in the Seventh Schedule
- B. a scholarly classification, not constitutional text
- C. binding on the Supreme Court
- D. created by the 42nd Amendment

Answer: B.

Explanation: The Constitution lists directives article by article without category labels.

R3. Minerva Mills held that:

- A. all of Article 31C is void
- B. every DPSP overrides Articles 14 and 19
- C. the 42nd Amendment extension of 31C to all DPSP is invalid and Part III-Part IV balance is basic structure
- D. Article 39(b)/(c) can never receive protection

Answer: C.

Explanation: The original limited 39(b)/(c) protection survives.

R4. Which is correct regarding ordinary Lok Adalat?

- A. It decides all disputes on merits after failed talks.
- B. Consent is irrelevant to its award.
- C. It hears non-compoundable offences.
- D. It is a conciliatory forum; award rests on settlement and is final/deemed decree/no appeal.

Answer: D.

Explanation: Merits adjudication after failed conciliation belongs to the Permanent Lok Adalat's limited statutory field.

R5. Which UCC formulation is correct?

- A. Courts have made legislative observations but have not ordered enactment of a UCC.
- B. *Shayara Bano* enacted a national civil code.
- C. Article 44 is directly enforceable.
- D. Entry 5 belongs exclusively to the Union List.

Answer: A.

Explanation: Article 44 is non-justiciable and the field is concurrent.

R6. After Rajendra N. Shah:

- A. Article 43B disappeared.
- B. Part IXB remains for multi-State co-operatives; its State-co-operative operation failed for want of ratification.

- C. all State co-operative laws became void.
- D. co-operative societies ceased to be a constitutional subject.

Answer: B.

Explanation: Severability preserved the valid components.

R7. The current labour-law answer should:

- A. list only pre-Code statutes as if nothing changed
- B. assert uniform implementation outcomes across every State
- C. use the four Labour Codes as in force from 21 Nov 2025, while qualifying State rules and delivery capacity
- D. state that Articles 42-43A are now Fundamental Rights

Answer: C.

Explanation: The legal commencement is verified; outcomes still require evidence.

R8. Article 31C currently:

- A. protects all DPSP laws from all review
- B. makes every private asset a community resource
- C. excludes judicial review of the statutory declaration
- D. gives a limited Articles 14/19 shield to genuine 39(b)/(c) laws while retaining review

Answer: D.

Explanation: This is the exact current-law control.

PART VI - Original Mains practice with examiner-grade model solutions

M1. "The Directive Principles are non-justiciable, but not non-binding." Explain. (10 marks, 150 words)

Model solution. Thesis: Article 37 denies a direct judicial remedy but simultaneously makes DPSP fundamental in governance and imposes a duty on the State to apply them in making laws. Non-justiciability therefore concerns the mode of enforcement, not constitutional insignificance.

First, Part IV supplies the welfare purpose of public power. Articles 38-39 direct justice, distribution and anti-concentration; Articles 41-43 protect work, assistance and labour dignity. Their primary sanction is political: Ambedkar argued that an elected government ignoring them must answer to the electorate.

Second, directives shape law and institutions. Article 39A became the Legal Services Authorities Act, 1987 and NALSA; Article 40 informed the 73rd Amendment; Articles 41/45 informed *Unni Krishnan*, Article 21A and the RTE Act.

Third, they possess judicial relevance. Courts use DPSP to interpret rights and reasonableness. *Minerva Mills* treated harmony between Parts III and IV as basic structure.

Qualification: Courts cannot ordinarily design the full welfare budget or compel Article 44 merely from Part IV.

Conclusion: DPSP bind through constitutional duty, legislation, interpretation and democratic accountability, while preserving policy sequencing.

Why this earns marks: It explains the apparent paradox through Article 37's full text, gives three named conversion examples, uses *Minerva Mills*, states the institutional limitation and directly answers "non-binding."

M2. Examine the present constitutional scope of Article 31C after Property Owners Association. (10 marks, 150 words)

Model solution. Thesis: Article 31C survives as a narrow distributive shield, not a general DPSP supremacy clause.

The 25th Amendment protected laws giving effect to Article 39(b) or (c) from challenge under Articles 14, 19 and then Article 31, and attempted to make the legislative declaration conclusive. *Kesavananda Bharati* upheld the substantive shield but invalidated exclusion of judicial review. The 42nd Amendment extended the shield to every DPSP; *Minerva*

Mills struck that extension and held Part III-Part IV balance to be basic structure.

In *Property Owners Association* (5 November 2024), the nine-judge Bench confirmed that Article 31C, to the extent upheld in *Kesavananda*, remains in force. A court may examine whether the law genuinely furthers 39(b)/(c). Privately owned resources may qualify under 39(b), but not automatically. Nature, community impact, scarcity, concentration and common good are relevant.

Conclusion: Current Article 31C shields genuine 39(b)/(c) laws only against Articles 14 and 19; judicial review and basic-structure limits remain.

Why this earns marks: It gives the amendment-case chronology, the exact surviving rights shield, the current private-resource test and the review caveat without saying all DPSP or all private assets are covered.

M3. Trace the evolution of the relationship between Fundamental Rights and Directive Principles. Has harmony replaced hierarchy? (15 marks, 250 words)

Model solution. Thesis: The constitutional journey moves from a simple priority rule toward structured harmony, but harmony does not mean that enforceable rights disappear before any welfare claim.

Conflict phase: In *Champakam Dorairajan* (1951), a directive could not override Article 29(2); the First Amendment responded through Article 15(4). *Golaknath* (1967) then held Fundamental Rights unamendable, restricting Parliament's capacity to implement Part IV.

Constituent response: The 24th Amendment affirmed amendment power. The 25th inserted Article 31C for laws implementing Article 39(b)/(c). *Kesavananda Bharati* (1973) upheld the limited shield but struck the judicial-review ouster and subjected amendment power to basic structure.

Attempted Part IV primacy: The 42nd Amendment extended 31C to all DPSP. *Minerva Mills* (1980) invalidated it: Parts III and IV are "two wheels," and their balance is basic structure. The goals of Part IV must be pursued through rights-compatible means.

Harmonising phase: *Unni Krishnan* used Articles 41/45/46 to illuminate Article 21; the 86th Amendment then inserted Article 21A. *I.R. Coelho* prevented post-1973 Ninth Schedule immunity from defeating basic structure.

Current precision: *Property Owners Association* (2024) confirms the original 39(b)/(c) shield, while rejecting automatic classification of every private asset as a community resource.

Verdict: Harmony has replaced crude hierarchy: rights remain enforceable constraints, directives supply distributive ends, amendment/legislation may reconcile them, and basic structure preserves judicial review and balance.

Why this earns marks: It traces the complete chronology, explains cause and effect, includes education and Ninth Schedule developments, states the exact 2024 position and gives a qualified answer to the final question.

M4. Assess whether India's legal-services and Lok Adalat framework adequately realises Article 39A. (15 marks, 250 words)

Model solution. Thesis: India has created a deep statutory architecture for Article 39A, but effective equal justice depends on service quality and informed consent, not institutional count or disposal figures alone.

Architecture: The Legal Services Authorities Act, 1987 creates NALSA, State Authorities, Supreme Court/High Court Committees, District Authorities and Taluk Committees. Section 12 covers SC/ST members, trafficking/begar victims, women, children, persons with disability, disaster/atrocity victims, industrial workmen, persons in custody and those below prescribed income ceilings. Section 13 adds a prima facie-case test.

Services: The network supplies advice, representation, drafting, fees/documents, clinics and awareness. *M.H. Hoskot* and *Hussainara Khatoon* connect counsel to Article 21 fair procedure.

Lok Adalat contribution: Ordinary Lok Adalats consensually settle pending or pre-litigation disputes; awards are deemed decrees, final and non-appealable. Permanent Lok Adalats address pre-litigation public-utility disputes and may decide on merits after failed conciliation, subject to the statutory offence bar.

Gaps: Low awareness, weak lawyer-client communication, uneven panel quality, linguistic/digital exclusion and pressure for disposal can reduce substantive justice. Consent must not become coerced settlement.

Way forward: early advice, counsel-performance review, client feedback, local-language access, stronger Taluk clinics and outcome-based evaluation.

Conclusion: Article 39A is institutionally realised but not uniformly experienced; the next reform is quality assurance and last-mile trust.

Why this earns marks: It accurately separates eligibility, institutions, ordinary/Permanent Lok Adalat powers, Article 21 cases, achievement and implementation limits, and proposes reforms tied to the diagnosis.

M5. Article 44 is a constitutional direction, but a Uniform Civil Code is a legislative design problem. Discuss. (15 marks, 250 words)

Model solution. Thesis: Article 44 sets the goal of common civil citizenship, but Article 37 leaves its form and timing to democratic legislation constrained by equality, liberty, religion, federal competence and workable transition.

Constitutional case: Articles 14-15 support removal of sex-based discrimination. Article 25 is subject to other Fundamental Rights and Article 25(2) permits social reform. Concurrent List Entry 5 allows Parliament and States to legislate on marriage, divorce, adoption and succession.

Judicial record: *Shah Bano*, *Sarla Mudgal* and *John Vallamattom* decided statutory/equality disputes and urged legislative attention to Article 44; they did not issue a mandamus to enact a UCC. *Shayara Bano* invalidated instant triple talaq, demonstrating targeted reform rather than a judicial common code.

Design choices: India has used community-specific codification, the opt-in Special Marriage Act, targeted equality reform and now a State common-code experiment. Goa is instructive but not perfectly uniform.

Institutional caution: The 21st Law Commission in 2018 preferred reform of discriminatory family laws at that stage; the 22nd opened consultation in 2023. Uttarakhand's Act received assent on 11 March 2024, commenced on 27 January 2025 and excludes Scheduled Tribes/customary-rights groups under section 2.

Verdict: Legitimacy requires consultation, gender-just rules, clear transition, federal competence and protection against majoritarian transplantation.

Why this earns marks: It integrates Article 44, Entry 5, equality/religion, four cases, reform routes, Law Commission positions and secure Uttarakhand facts while explicitly refusing the false "courts ordered UCC" claim.

M6. How far have Directive Principles transformed India from a police state into a welfare state? Critically evaluate. (20 marks, 300 words)

Model solution. Thesis: DPSP have transformed the constitutional purpose and institutional reach of the Indian State, but uneven capacity, federal variation and outcome gaps make the welfare transition substantial rather than complete.

Constitutional transformation: Articles 38-39 constitutionalise justice, livelihood, distribution and anti-concentration. Articles 41-43 add work, assistance, humane conditions and living wage; Articles 45-48A add childhood, vulnerable sections, health, agriculture and environment.

Named institutional gains: Land reform received protection through Articles 31A/31B and early amendments, though *I.R. Coelho* preserves post-1973 basic-structure review. Article 40 matured through the 73rd Amendment, while the 74th supports urban welfare delivery. Article 39A produced the 1987 Act and NALSA. Education moved from Articles 41/45 through *Unni Krishnan* to Article 21A and the RTE Act. Article 48A informed environmental statutes and Article 21 jurisprudence. Article 43B constitutionalised co-operative principles, subject to the federal limit in *Rajendra N. Shah*. The four Labour Codes, in force from 21 November 2025, provide a current consolidated central framework for wage, industrial-relations, social-security and safety goals.

Why the transition remains incomplete: Legislation does not ensure outcomes. Local bodies lack predictable funds/functionaries; legal-aid quality varies; informal workers may remain outside effective protection; health/nutrition depend heavily on State capacity; environmental enforcement is fragmented. Electoral incentives favour visible transfers over institution-building, and federal fiscal inequality produces territorial inequality.

Constitutional limit: Welfare ends cannot erase rights. *Minerva Mills* makes Part III-Part IV balance basic structure; *Property Owners* preserves only a narrow Article 31C shield.

Conclusion: India is constitutionally and institutionally a welfare state, but the next stage is outcome constitutionalism: funded local institutions, minimum national floors, measurable service quality and rights-compatible implementation.

Why this earns marks: It covers the full philosophy-to-delivery arc, uses eight named constitutional/statutory examples, analyses mechanism and incentives, states rights/federal limitations and gives a graded "how far" verdict.

M7. "Directive Principles are a constitutional compass, not a delivery guarantee." Evaluate the criticisms and continuing utility of Part IV. (20 marks, 300 words)

Model solution. Thesis: The metaphor is accurate if "compass" denotes binding constitutional direction rather than optional morality: Part IV guides legislation, interpretation and political accountability but cannot by itself guarantee resources, institutions or outcomes.

Criticisms: K.T. Shah's "pious superfluities" and resource-dependent cheque attack the absence of legal remedies. T.T. Krishnamachari's "dustbin of sentiments" and N. Srinivasan's arrangement critique question coherence. Ivor Jennings called them pious aspirations and saw a dated Fabian inheritance. K. Santhanam warned of Centre-State and executive conflict.

Why these critiques matter: Article 41 itself admits capacity constraints. Broad directives can permit symbolic legislation, selective implementation and judicial overreach. Many subjects - health, agriculture, local government, labour and personal law - are federally divided. Without budgets, trained personnel and grievance systems, constitutional language may not change lived outcomes.

Continuing utility: Article 37 expressly makes the principles fundamental in governance and a State duty. Ambedkar linked them to economic democracy and electoral sanction; Granville Austin treated Part III and IV as the conscience of social revolution; B.N. Rau emphasised educative value; M.C. Setalvad saw them as beacon-lights for courts and the background to State action.

Concrete proof: Article 39A produced NALSA; Article 40 informed constitutional local government; Articles 41/45 helped generate Article 21A; Article 48A shaped environmental law; Article 43B supports co-operative autonomy. *Minerva Mills* constitutionalised harmony, while *Property Owners* preserves a carefully bounded distributive shield.

Graded verdict: DPSP are neither judicially enforceable rights nor empty promises. Their enduring value lies in setting ends, disciplining public justification and enabling progressive conversion into rights and institutions. Delivery requires finance, federal coordination, measurement and Part III-compatible means.

Why this earns marks: It uses exact named critics and defenders, tests their claims against Article 37 and real institutions, integrates federal/resource/judicial limits and gives a balanced constitutional verdict rather than a quotation list.